

WITNESS STATEMENT

Criminal Justice Act 1967, s.9

Statement of	Fiona Margaret KETTLEBOROUGH
Age	Over 18 (d.o.b. 30.05.1986)
Occupation	Health and Safety Officer, Meridian Structures Limited (NEBOSH Diploma, GradIOSH)
Taken by	HM Inspector K. Ormerod-Suss
Date	4 December 2023, and amended 22 May 2024 (see paragraph 24)
Representation	Statement taken in the presence of Ms O. Trelawney-Baptiste of Holloway Brant LLP, solicitors for Meridian Structures Limited. The witness was advised of her right to independent representation and stated that she was content to be represented by the company's solicitors.
Exhibits produced	FK/1 (temporary works register extract); FK/2 (site safety inspection reports, Oct-Nov 2023); FK/3 (email 16.11.2023 09:12 from P. Raghunathan); FK/4 (annual leave record)

This statement is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

1. I have been employed by Meridian Structures Limited since August 2021. I am one of three health and safety officers covering fourteen live sites across the north of England. Brackenmoor Wharf was one of five sites allocated to me. I attended the site on average once every nine or ten days.
2. I report to Mr Aldwyn Ferris, Construction Director. There is no board-level health and safety director. Mr Ferris holds the health and safety portfolio in addition to construction delivery. There is no separate SHEQ director and there has not been one since the role was removed in a restructure in February 2023.
3. I am not the Temporary Works Coordinator. That role at Brackenmoor Wharf was held by Mr Ruaridh Delacroix-Hale, the Site Manager. I raised with Mr Ferris on more than one occasion that Mr Delacroix-Hale held too many roles. I recall raising it in a one-to-one in July 2023 and again by email in September 2023, though I have not been able to locate that email.
4. I produce the temporary works register as FK/1. The annotation ‘TWC role to move to FK when resource allows’ is in my handwriting. I wrote it in, I think, August or September 2023 after a conversation with Mr Ferris. Nothing came of it.

The design check certificate

5. I first saw the document TWDC-BW-07 on 16 November 2023, two days after the collapse, when it was sent to me by Mr Delacroix-Hale by email at 08:12 with the message ‘for the file’.
6. It should have been on the temporary works register before the bay was brought into use. It was not on the register when I last looked at the register, which I now believe was 8 November 2023.
7. I want to be careful here. I cannot say the document did not exist on 8 November. I can say it was not on the register on that date. Documents were often late onto the register. That was a chronic problem I had raised.
8. The safe working load stated on TWDC-BW-07 is 2,000 kg. That surprised me when I saw it. My understanding from the scaffold drawing was that the upper bays were much lighter than that. I did not, however, have a copy of the controlled drawing myself. I asked Mr Delacroix-Hale about the discrepancy on 16 November 2023. He said the 2,000 kg figure was ‘the checked figure’ and that the drawing was ‘out of date’.

14 November 2023

9. I was on site on 14 November 2023. I arrived at about 09:20.
10. At 10:40 I instructed that lifting operations be suspended because of wind. I did that verbally to Mr Delacroix-Hale in the site cabin. I recorded it in the site daily log myself. I am confident about the time because I looked at the clock in the cabin.
11. I then left the cabin and went to the welfare block. I was there for perhaps twenty minutes dealing with a first aid matter.
12. I did not authorise lifting to recommence and I was not asked to. When I came out I could hear the crane. At 11:19 I sent a message to the site leads group saying ‘Are we still lifting?? Gusts are well over.’ I did not receive a reply. The collapse happened a few minutes later.
13. I have been asked why, if I had suspended lifting at 10:40, I asked at 11:19 whether we were ‘still’ lifting rather than saying that lifting had been suspended. I do not have a good answer to that. I think I was writing quickly. I accept the

wording is not consistent with what I say I had done.

14. I have been asked about the site anemometer readings for 14 November 2023, which record 18 mph at 11:00 and 21 mph at 11:15. I did not take those readings. The initials against them are 'RDH'. I would not have suspended lifting on a reading of 18 mph, because the trigger in the lift plan is 23 mph. I suspended lifting on my own assessment of conditions, not on a reading.

15. I have been shown the Met Office record showing a maximum gust of 43 mph at 11:20. I cannot reconcile that with the site readings. I can only say that in my judgement standing on that site at half past ten it was not safe to lift, and that is why I stopped it.

Ms Raghunathan

16. I produce as FK/3 the email sent to me and to Mr Ferris by Ms Priya Raghunathan on 16 November 2023 at 09:12.

17. I read it on the morning it was sent. It caused me considerable concern. I raised it with Mr Ferris the same day. He said words to the effect that Priya was 'out of her lane' and that the matter was 'in the hands of the lawyers now'.

18. I did not report the concern to HSE myself. I have thought about that a great deal. I was told that the company's solicitors were dealing with all communications with HSE and that I should not communicate directly. I now understand that I should have raised it regardless.

19. I was not consulted about Ms Raghunathan's dismissal and I was not told it was going to happen. I learned of it after the event.

20. I have been shown a board minute dated 2 November 2023 which is said to record a decision to restructure the commercial function. I have never seen that minute before. I do not attend board meetings.

Induction of the deceased

21. I have been shown the site induction register bearing an entry for 'T. Wiecezorek' dated 6 November 2023 with my name recorded as the trainer.

22. I did not deliver that induction. I was on annual leave in Portugal from 3 to 10 November 2023. I produce my leave record as FK/4.

23. I have been shown a version of the HR record which shows that leave as having been cancelled, with the cancellation entered on 20 November 2023. That is not correct. I took the leave. I have my boarding passes.

24. I do not know who delivered that induction or who wrote my name on the register. Inductions were sometimes delivered by the site team when I was not available and my name was, I believe, used as the default entry in the template.

Amendment

24. This paragraph is added on 22 May 2024. In my original statement at what is now paragraph 13 I said 'I did not authorise lifting to recommence and nobody restarted it without telling me.' I have been shown material which indicates lifting did recommence. I have therefore amended that paragraph. I did not intend to mislead. I had assumed at the time I made my statement that the collapse occurred during the placing of a panel already landed before 10:40. I now understand that is wrong.

25. I wish to add one further matter. On 21 November 2023 I was asked by Mr Ferris to 'go through the files and make sure everything is tidy before the inspector comes back'. I understood that to mean that paperwork should be complete and in order. I did not remove or alter anything. I raised it with Ms Trelawney-Baptiste at the time and was told to preserve everything. I did.

Signed:

F. M. Kettleborough

Name / role:

F. M. Kettleborough — Witness

Date:

22 May 2024

Note:

Original statement dated 04.12.2023. Paragraphs 13, 24 and 25 amended/added 22.05.2024. Both versions are disclosed.